

13. 9:00 AM CASE NUMBER: N26-0717
CASE NAME: ANTHONY BETTENCOURT VS. THE DEPARTMENT OF MOTOR VEHICLES
WRIT OF MANDATE - DMV
FILED BY: BETTENCOURT, ANTHONY
TENTATIVE RULING:

This hearing was vacated on June 29, 2026.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-03209
CASE NAME: JENISE HAMBLIN VS. DOES 1 THROUGH 50 INCLUSIVE
COMPEL FURTHER RESPONSES
FILED BY: HAMBLIN, JENISE KAY
TENTATIVE RULING:

Plaintiff Jenise Hamblin filed this Motion to Compel Further Responses to Requests for Production of Documents. The parties initially agreed to continue the hearing on this Motion, as there was a change in counsel for Defendant Artemio Hernandez. In advance of the new hearing date, on April 30, Hernandez served amended discovery responses. On August 14, 2026, Hernandez filed an opposition to the original Motion, arguing it is now moot. On August 20, 2026, Hamblin filed a reply, arguing remaining deficiencies in the discovery responses as well as a live issue of sanctions.

The Court notes that the parties' briefing was not as helpful as it could have been. Given the amended responses, Hernandez's opposition brief should have been more than two substantive pages; it should have responded specifically to the issues raised by Hamblin's separate statement. Similarly, Hernandez articulated that between the service of amended responses at the end of April and the filing of the opposition brief in August, counsel received *no* information regarding ongoing deficiencies. Although both parties have technically complied with the meet and confer requirements, compliance with the spirit of those requirements is sorely lacking, resulting in difficulty resolving this motion. As further explained below, the Court **grants in part and denies in part** Hamblin's Motion.

Waiver of Objections

It appears not to be a matter of dispute that Hernandez's former attorney failed to respond to discovery adequately. The original response to the Request for Production of Documents did not even mention Requests beyond number 9, and counsel ignored those requests in the meet and confer correspondence. New counsel has served amended responses that resolve many of these issues. Hamblin argues that Hernandez's objections are waived, pursuant to Code of Civil Procedure section 2031.300. This appears to be accurate, given the record before this Court. The issue is, however, to the extent that Hernandez is withholding production of any of these documents on any of the objections, they appear to be grounds such as privacy interests of third parties, and attorney-client

privilege, neither of which is waivable by Hernandez's former attorney. The Court fails to see how any waiver has any application to the documents that are subject to production at this time.

Specific Requests

Request for Production No. 1

This request seeks communications between Defendant and other individuals related to this action. Plaintiff believes the production lacks communications between Hernandez and his insurance company as well as between him and his employer, friends, and family. Hernandez's amended response identifies photographs, but no other communications. There is no statement that this is the entire universe of possible documents, so it is impossible to tell whether Hernandez has undertaken a thorough search and whether any documents are being withheld.

Request for Production Nos. 7 and 9

This request seeks documents relating to Defendant's son Abraham Hernandez's communications. Regardless of his status as Defendant's son, he is still a third party. Plaintiff can seek *Defendant's* documents related to the third party, but documents from a third party himself are not properly sought through these forms of discovery. Hamblin fails to cite any cases permitting the discovery sought. Hernandez's response is sufficient and no further response will be compelled.

Request for Production No. 8

Hernandez's employment records that refer or relate to this action. Hernandez is only obligated to produce such documents in his possession, custody, or control. He is under no obligation to retrieve these from his employer. Further, a word of caution: Before Hamblin subpoenas these documents from Hernandez's employer, she must consider the limited scope of documents that could possibly be relevant, and further the limited scope of relevance to the actual issues in this case. Hamblin asserts that she is seeking to understand whether Hernandez was within the scope of his employment at the time. That is a valid inquiry, but is far more limited than what could be interpreted from the current language of Request for Production No. 8. Hernandez's response is sufficient and no further response will be compelled.

Request for Production Nos. 10-13

These requests seek communications between Hernandez and his son relating to the accident. Although Hamblin states that no response was received, that is not accurate. For each of these responses, Hernandez has reported that "after a diligent search and reasonable inquiry, Responding Party has determined that no responsive, non-privileged documents are in his possession, custody, or control." Hernandez's response is sufficient and no further response will be compelled.

Request for Production Nos. 14-17

These requests seek communications between Hernandez and the California Highway Patrol. Although Hamblin states that no response was received, that is not accurate. For each of these responses,

Hernandez has reported that “after a diligent search and reasonable inquiry, Responding Pary has determined that no responsive, non-privileged documents are in his possession, custody, or control.” Hernandez’s response is sufficient and no further response will be compelled.

Request for Production Nos. 18-21

These requests seek communications between Hernandez and his insurance company relating to the accident. Although Hamblin states that no response was received, that is not accurate. For each of these responses, Hernandez has provided his declaration page. He has not, however, reported whether he has engaged in a diligent search and reasonable inquiry and whether all responsive documents have been produced. He must do so.

Request for Production Nos. 22-25

Through these requests, Hamblin purports to seek documents relating to “nonprivileged communications between the defendant and his counsel.” The requests themselves do not explain how there could be any such documents. In her reply brief, Hamblin finally explains the mystery, noting that there may be “communications also involving third parties that break the attorney-client privilege.” Although Hamblin states that no response was received, that is not accurate. For each of these responses, Hernandez has reported that “after a diligent search and reasonable inquiry, Responding Pary has determined that no responsive, non-privileged documents are in his possession, custody, or control.” Hernandez’s response is sufficient and no further response will be compelled.

Request for Production Nos. 26-29

These requests seek communications between Hernandez and the towing company. Although Hamblin states that no response was received, that is not accurate. For each of these responses, Hernandez has identified the towing company and reported that “after a diligent search and reasonable inquiry, Responding Pary has determined that no responsive, non-privileged documents are in his possession, custody, or control.” Hernandez’s response is sufficient and no further response will be compelled.

Request for Production No. 30

This request seeks communication between Hernandez and his insurance company relating to the insurance policy. Although Hamblin states that no response was received, that is not accurate. Hernandez produced his declarations page. He has not, however, reported whether he has engaged in a diligent search and reasonable inquiry and whether all responsive documents have been produced. He must do so. It is hard to believe that no further communications occurred with his insurance company and those documents must be produced.

Request for Production Nos. 31-36

These requests seek documents to support affirmative defenses 1-7. Although Hamblin states that no response was received, that is not entirely accurate. Hernandez refers to “Exhibits A-C.” The Court

cannot discern what this is referring to, and therefore cannot tell whether Hernandez has produced responsive documents. He has also not reported whether he has engaged in a diligent search and reasonable inquiry and whether all responsive documents have been produced. He must do so.

Lack of Privilege Log

The only documents reportedly withheld are documents between Hernandez and his counsel. If that is accurate, no privilege log is required. A privilege log is only useful and necessary when there are documents that could arguably not be privileged, such as those involving third parties.

Sanctions

Hamblin is correct that the Motion is not moot. Hernandez's production remains deficient in certain small ways, and a Motion to Compel is not mooted by the service of amended responses. Nor is Hernandez incorrect that many of these issues could have been addressed by further meeting and conferring since April 30, 2026. Given Hernandez's prior counsel's delinquencies with respect to discovery responses, which was substantially remedied by new counsel's amended responses, and Hamblin's counsel's failure to engage in any meeting and conferring since April 30, 2026, the Court considers sanctions to be inappropriate in this circumstance and declines to award them.